

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

14. KERRI DISNEY V. DOUGLAS DISNEY

26FL0137

Petitioner filed a Request for Order (RFO) seeking child and temporary spousal support orders, as well as a request for attorney's fees. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served electronically on March 25, 2026. Petitioner is seeking guideline child support. Petitioner is seeking \$3,326 in temporary spousal support. Petitioner is also seeking \$15,000 in Family Code section 2030 attorney's fees.

Respondent filed a Responsive Declaration on April 8, 2026. Respondent concurrently filed an Income and Expense Declaration. Respondent requests the court make support orders based on the parties' actual income; order that Petitioner assume responsibility for the household expenses upon the commencement of the support orders; and deny Petitioner's request for Family Code section 2030 attorney's fees.

After reviewing the filings as outlined above, the court is utilizing Respondent's estimated income for Petitioner and a 0% timeshare for Respondent in calculating support. Utilizing these figures the court finds guideline child support to be \$3,250 (see attached Xspouse). The court is ordering Respondent to pay Petitioner \$3,250 per month as and for guideline child support, effective May 1, 2026. Future payments are due on the first of each month until further order of the court or termination by operation of law.

The court finds guideline temporary spousal support to be \$1,136 per the Alameda formula (see attached Xspouse). The court orders Respondent to pay Petitioner \$1,136 per month as and for temporary guideline spousal support, effective May 1, 2026. Payments are due on the first of each month until further order of the court or termination by operation of law.

The court finds Respondent routinely earns bonus income. The court is ordering Petitioner to prepare a bonus income table based on the figures the court has used for the guideline calculations. Respondent is ordered to true up any bonus income on a quarterly basis. Respondent is ordered to provide Petitioner with paystubs on a quarterly basis.

The court is ordering Petitioner to be responsible for the household expenses effective May 1, 2026. The parties are ordered to share in the costs of the minors' uncovered medical expenses as set forth in the attach FL-192. Further, parties are to share the costs of the minors' extracurricular activities equally.

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Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

The court finds there is a disparity in the parties' access to funds. Additionally, the court finds that after the order set forth above regarding Petitioner being responsible for the household expenses, Respondent does have the ability to pay for both his and Petitioner's counsel. The court is ordering Respondent to pay \$15,000 to Petitioner as and for attorney's fees. This amount may be paid in one lump sum, or in monthly payments beginning May 1, 2026 and due on the first of each month until paid in full (approximately 15 months). Respondent is to pay directly to Petitioner's counsel.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT IS UTILIZING RESPONDENT'S ESTIMATED INCOME FOR PETITIONER AND A 0% TIMESHARE FOR RESPONDENT IN CALCULATING SUPPORT. UTILIZING THESE FIGURES THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$3,250 (SEE ATTACHED XSPOUSE). THE COURT IS ORDERING RESPONDENT TO PAY PETITIONER \$3,250 PER MONTH AS AND FOR GUIDELINE CHILD SUPPORT, EFFECTIVE MAY 1, 2026. FUTURE PAYMENTS ARE DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS GUIDELINE TEMPORARY SPOUSAL SUPPORT TO BE \$1,136 PER THE ALAMEDA FORMULA (SEE ATTACHED XSPOUSE). THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$1,136 PER MONTH AS AND FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT, EFFECTIVE MAY 1, 2026. PAYMENTS ARE DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

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THE COURT FINDS RESPONDENT ROUTINELY EARNS BONUS INCOME. THE COURT IS ORDERING PETITIONER TO PREPARE A BONUS INCOME TABLE BASED ON THE FIGURES THE COURT HAS USED FOR THE GUIDELINE CALCULATIONS. RESPONDENT IS ORDERED TO TRUE UP ANY BONUS INCOME ON A QUARTERLY BASIS. RESPONDENT IS ORDERED TO PROVIDE PETITIONER WITH PAYSTUBS ON A QUARTERLY BASIS.

THE COURT IS ORDERING PETITIONER TO BE RESPONSIBLE FOR THE HOUSEHOLD EXPENSES EFFECTIVE MAY 1, 2026. THE PARTIES ARE ORDERED TO SHARE IN THE COSTS OF THE MINORS' UNCOVERED MEDICAL EXPENSES AS SET FORTH IN THE ATTACH FL-192. FURTHER, PARTIES ARE TO SHARE THE COSTS OF THE MINORS' EXTRACURRICULAR ACTIVITIES EQUALLY.

THE COURT FINDS THERE IS A DISPARITY IN THE PARTIES' ACCESS TO FUNDS. THE COURT FINDS THAT AFTER THE ORDER SET FORTH ABOVE REGARDING PETITIONER BEING RESPONSIBLE FOR THE HOUSEHOLD EXPENSES, RESPONDENT DOES HAVE THE ABILITY TO PAY FOR BOTH HIS AND PETITIONER'S COUNSEL. THE COURT IS ORDERING RESPONDENT TO PAY \$15,000 TO PETITIONER AS AND FOR ATTORNEY'S FEES. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM, OR IN MONTHLY PAYMENTS BEGINNING MAY 1, 2026 AND DUE ON THE FIRST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 15 MONTHS). RESPONDENT IS TO PAY DIRECTLY TO PETITIONER'S COUNSEL.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

New Case

2026 Xspouse 2026-1-CA Monthly Figures

Fixed Shares

	Father	Mother
Number of children	0	2
Percent time with NCP	0.00%	0.00%
Filing status	MFJIN	MFJIN
Number of exemptions	1	3
Wages and salary	13000	6185
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	2000	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	834	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	723	0
Child care expenses	0	0

Monthly Figures

2026

GUIDELINE

Nets (adjusted)

Father	10006
Mother	4550
Total	14556

Support

Addons	0
Guideln CS	3250
Alameda SS	1136
Total	4386

Proposed

Tactic 9

CS	3250
SS	1136
Total	4386
Saving	0
Releases	0

Cash Flow

Guideline Proposed

Combined net spendable	14556	14556
Percent change	0%	0%

Father

Payment cost/benefit	-4386	-4386
Net spendable income	5621	5621
Change from guideline	0	0
% of combined spendable	39%	39%
% of saving over guideline	0%	0%
Total taxes	3437	3437
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	9583	9583

Mother

Payment cost/benefit	4386	4386
Net spendable income	8936	8936
Change from guideline	0	0
% of combined spendable	61%	61%
% of saving over guideline	0%	0%
Total taxes	1635	1635
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	4989	4989

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 100	0	0	0 Father	3,250 Father	3,250 Father
	0000-00-00	0 - 100	0	0	0 Father	1,234 Father	1,234 Father
	0000-00-00	0 - 100	0	0	0 Father	2,016 Father	2,016 Father

Superior Court of California
County of El Dorado

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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15. FREDERICK GUNRAN V. PATRICIA GUNDRAN

25FL0827

Respondent filed a Request for Order (RFO) along with an Order Shortening Time (OST) on April 8, 2026. On April 10, 2026, the court granted the OST and set the matter for a hearing on April 23, 2026. Respondent was directed to serve Petitioner on or before April 10, 2026. Petitioner was directed to file a Responsive Declaration on or before April 17, 2026. Proof of Service shows Petitioner was personally served on April 10th.

Petitioner filed a Responsive Declaration on April 20, 2026. It was served on April 20th. The court finds this to be late filed, and therefore has not considered it.

Family Code section 2337 provides that “[i]n a proceeding for dissolution of marriage, the court, upon noticed motion, may sever and grant an early and separate trial on the issue of the dissolution of the status of the marriage apart from other issues.” Fam. Code, § 2337(a). The trial court may separately try the issue of termination of marriage if doing so “is likely to simplify the determination of the other issues.” Cal. Rules of Court, rule 5.390(b)(7).

Public policy favors bifurcation of trial on pivotal issues in a dissolution action. In re Marriage of Macfarlane & Lang (1992) 8 Cal.App.4th 247, 257; see In re Marriage of Wolfe (1985) 173 Cal.App.3d 889, 893–894 (“To the extent bifurcation of issues such as custody, support or the division of community property can assist the parties to achieve settlement of remaining issues, it should be encouraged”). For the issue of marital status, “[c]onsistent with the legislative policy favoring no fault dissolution of marriage, only slight evidence is necessary to obtain bifurcation and resolution of marital status. On the other hand, a spouse opposing bifurcation must present compelling reasons for denial.” Gionis v. Superior Court (1988) 202 Cal.App.3d 786, 790.

The minimum statutory requirements for bifurcating and terminating marital status are that six months must have passed since the date of service of the summons and petition (§ 2339(a)), and that the party seeking termination of marital status must have served a preliminary declaration of disclosure or obtained a written agreement to defer service to a later date (§ 2337, subd. (b)). Both requirements were met here. Further, the necessary pension plan has been joined.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.